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Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT TYLER ROBINSON'S RENEWED REQUEST THAT THIS COURT REFER THE MOTION TO DISQUALIFY TO THE UTAH ATTORNEY GENERAL PURSUANT TO UTAH CODE §17-68-304; MEMORANDUM OF POINTS AND AUTHORITIES Case No. 251403576 Honorable Tony F. Graf, Jr. Hearing Date: Feb. 3, 2026
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Defendant, Tyler James Robinson, by and through his counsel of record, hereby renews in writing, his earlier verbal request that this Court refer the pending motion to disqualify the Utah County Attorney's Office to the Utah Attorney General pursuant to Utah Code § 17-68-304. This renewed request is based upon the attached memorandum of points and authorities, as well as any other matters that the Court may consider at hearing on February 3, 2026 and/or thereafter.

Mr. Robinson renews his request that this Court adjourn the evidentiary hearing on, and postpone any further proceedings concerning, this motion until the Attorney General acts upon this Court's referral pursuant to Utah Code § 17-68-304.

RESPECTFULLY SUBMITTED this 30th of January, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

MEMORANDUM OF POINTS AND AUTHOTITIES

I. Introduction

In his reply in support of his motion to disqualify, Mr. Robinson voiced his concern that the decision of the Utah County Attorney to simultaneously represent both his own political interests as the elected chief prosecutor in this county and the interests of the people of the State of Utah in connection with a non-frivolous motion to disqualify his office was improper and compounded both the conflict of interest and the appearance of a conflict of interest. *See* Dkt. 293, at 3-4 n.2. The Court did not view that footnoted expression of concern as sufficient to put the Court on notice of the impropriety, in Mr. Robinson's view, of that duality. The Court expressed concern that Mr. Robinson's subsequent verbal request on January 16, 2026, that the Court exercise the authority granted to it by Utah law to refer this motion to the Utah Attorney General, took the Court and opposing counsel by surprise. As stated in open court on January 16, 2026, counsel for Mr. Robinson take full responsibility for not adequately alerting the Court in advance of the hearing to the need for judicial intervention before litigation of the motion to disqualify proceeds.

However, Mr. Gray's *ad homonym* attack on Mr. Robinson and his counsel to the effect that the request for referral is "another stalling tactic to delay these proceedings" (Dkt. 332, at 21) is disingenuous and was designed both to persuade this Court that the substantive relief Mr. Robinson seeks should be subsumed by the timing of counsel's more clear call for that relief, and to shape the increasingly prejudicial media coverage, including the publication of statements of the State's highest elected officials.¹

¹ By way of example, Utah United States Senator Mike Lee, an attorney educated and licensed in Utah who has served as a federal prosecutor, as counsel for a former governor of Utah, and as a law clerk to a Supreme Court Justice, immediately after the January 16, 2026 hearing in this

The standards guiding the conduct of prosecutors strongly advise that where there may be a conflict of interest or even where a perceived conflict may negatively impact public perception of the integrity of a prosecution, recusal should be considered.² Mr. Robinson's request, reiterated here, is modest and well within the norms for how a non-frivolous notice of a conflict of interest should be addressed. The request is only, at this time, that the Court direct the County Attorney to refer this motion to the Attorney General, pursuant to clearly established Utah law, so that the Court, the public, and Mr. Robinson have no doubt that the disqualification issue is addressed, on behalf of the People of the State of Utah, by prosecutors who have no conflict of interest whatsoever and whose participation does not present even a perception of a conflict of interest.

II. It Was Not Until Mr. Gray Began to Testify That Further Evidence Emerged of a Conflict of Interest Affecting Mr. Gray Directly, Further Supporting Mr. Robinson's Position That Litigation of This Motion Must Be Referred to the Attorney General.

It is notable that while the Utah County Attorney's Office did, in October 2025, inform Mr. Robinson's counsel of the facts which they *unilaterally* (it turns out) determined did not

matter publicly pronounced both the verdict and punishment and called for Mr. Robinson's public execution. Emily Crane, Utah Sen. Mike Lee demand Charlie Kirk's accused assassin be executed 'in public,' NY Post (Jan. 21, 2026 at 6:56 ET), <https://nypost.com/2026/01/21/us-news/utah-sen-mike-lee-calls-for-charlie-kirks-alleged-assassin-tyler-robinson-to-face-public-execution/>. Mr. Gray made similar public pronouncements even before a suspect in the murder of Mr. Kirk had been identified, although he did not go so far as to advocate for an unlawful manner of execution. Mr. Gray's earlier improper extrajudicial statements, as well as those of other Utah and federal government officials, are addressed more directly by Mr. Robinson in other future litigation.

² Moreover, defense counsel in a capital case have their own ethical duty to consider, investigate, and assert all legal claims potentially available "as forcefully as possible." American Bar Association, *Guidelines for the Appointment and Performance of Defense Counsel in Death Penalty Cases* § 10.8 (2003), available at https://www.americanbar.org/content/dam/aba/administrative/death_penalty_representation/2003_guidelines.pdf.

create a conflict of interest and would not negatively impact public perception in the integrity of the prosecution, Mr. Gray did not thereafter disclose that the children of two members of his ward were also present at Mr. Kirk’s rally on September 10, 2025, and that one of them was “shook up” from that experience. Dkt. 332, at 93. While Mr. Gray testified that he was not aware of his personal relationship with individuals impacted by the charged conduct until after the Information was filed (*id.* at 92), that does not excuse his failure to disclose the connection between those personal relationships and this prosecution to this Court and to Mr. Robinson immediately upon learning of it, and keeping it secret until he was asked about it while testifying under oath.³

III. Utah Law Provides a Clear Procedural Path for This Court to Follow In Order to Ensure the Proper Litigation of the Disqualification Motion.

Utah Code section 17-68-304 provides, in pertinent part, that “[t]he attorney general shall assist the attorney with a criminal prosecution if a court: (a) finds that the attorney is unable to satisfactorily and adequately perform the duties of prosecuting a criminal case; and (b) recommends that the attorney seek additional legal assistance.” With respect to the “attorney” references in section 304, section 301 defines that term to include “a county prosecutor or district attorney, action as a public prosecutor or as civil counsel[.]” Utah Code § 17-68-301. Section 301 also provides that “the attorney shall perform each duty and responsibility of public prosecutor as provided by statute or ordinance.” *Id.* § 17-68-301(3).

³ Mr. Robinson’s counsel were not advised prior to testimony on January 16, 2026, that members of Mr. Gray’s religious ward attended Mr. Kirk’s rally, nor that they were negatively impacted by their experience.

The preamble to the Utah Rules of Professional Conduct provides this Court with the context in which it should view Mr. Robinson's reiterated request that this Court invoke section 17-68-304:

[1] A lawyer is a representative of clients, an officer of the legal system and a public citizen having special responsibility for the quality of justice.

...

[7] Many of a lawyer's professional responsibilities are prescribed in the Rules of Professional Conduct, as well as substantive and procedural law. However, a lawyer is also guided by personal conscience and the approbation of professional peers. A lawyer should strive to attain the highest level of skill, to improve the law and the legal profession and to exemplify the legal profession's ideals of public service.

...

[9] In the nature of law practice, however, conflicting responsibilities are encountered. Virtually all difficult ethical problems arise from conflict between a lawyer's responsibilities to clients, to the legal system and to the lawyer's own interest in remaining an ethical person while earning a satisfactory living. The Rules of Professional Conduct often prescribe terms for resolving such conflicts. Within the framework of these Rules, however, many difficult issues of professional discretion can arise. Such issues must be resolved through the exercise of sensitive professional and moral judgment guided by the basic principles underlying the Rules.

...

[10] The legal profession is largely self-governing. Although other professions also have been granted powers of self-government, the legal profession is unique in this respect because of the close relationship between the profession and the processes of government and law enforcement. This connection is manifested in the fact that *ultimate authority over the legal profession is vested largely in the courts.*

...

[16] Compliance with the Rules, as with all law in an open society, depends primarily upon understanding and voluntary compliance, secondarily upon reinforcement by peer and public opinion and finally, when necessary, upon enforcement through disciplinary proceedings. The Rules do not, however, exhaust the moral and ethical considerations that should inform a lawyer, for no worthwhile human activity can be completely defined by legal

rules. The Rules simply provide a framework for the ethical practice of law.

Utah R. Prof'l Cond., Preamble (emphasis added). Public prosecutors have special responsibilities under the ethical framework that guides the practice of law in Utah. "A prosecutor has the responsibility of a minister of justice and not simply that of an advocate. This responsibility carries with it specific obligations to see that the defendant is accorded procedural justice[.]" *Id.* R. 3.8., comment.

The American Bar Association has also promulgated standards for the professional conduct and performance of prosecutors. The Fourth Edition of those standards, published in 2017, provide in pertinent part that:

The prosecutor should not permit the prosecutor's professional judgment or obligations to be affected by the prosecutor's personal, political, financial, professional, business, property, or other interests or relationships. A prosecutor should not allow interests in personal advancement or aggrandizement to affect judgments regarding what is in the best interests of justice in any case.

ABA, *Criminal Justice Standards for the Prosecution Function* § 3-1.7(f) (2017), available at https://www.americanbar.org/groups/criminal_justice/resources/standards/prosecution-function/.

They further provide that "[t]he prosecutor should disclose to appropriate supervisory personnel any facts or interests that could reasonably be viewed as raising a potential conflict of interest."

Id. § 3-1.7(g).

Importantly, under Utah law, the Attorney General has supervisory responsibility over County Attorneys. "The Attorney General shall ... exercise supervisory powers over the district and county attorneys of the state in all matters pertaining to the duties of the district and county attorneys' offices[.]" Utah Code § 67-5-1(1)(f).

The Utah Supreme Court decision referenced during the hearing on January 16, 2026, *State v. Jimenez*, 588 P.2d 707 (1978), explicitly notes that the Attorney General has supervisory responsibility over County Attorneys and that where appropriate, the Court may trigger the Attorney General’s responsibilities under section 17-68-304 by finding that the County Attorney “is unable to satisfactorily and adequately perform the duties of prosecuting a criminal case” and by recommending that the County Attorney “seek additional legal assistance.” The *Jimenez* Court reasoned,

It is readily seen from the foregoing statutory provisions that the Attorney General is authorized to “prosecute . . . all causes to which the state . . . is a party” and he is specifically enjoined to: (1) *supervise* County Attorneys “in all matters pertaining to their offices”; (2) *assist* them “when required by the public service or directed by the governor”; and (3) to *assist* whenever it is determined by a district judge that a County Attorney is “unable to satisfactorily and adequately perform his duties.” Also implicit in the statutes is the authority of the various County Attorneys to themselves *request* the assistance of the Attorney General.

588 P.2d at 708 (emphasis added).

In another Utah Supreme Court case which cites *Jimenez* approvingly, the court embraced the common law principle that “the attorney general retains common law authority to intervene in any case involving the prosecution of a state criminal statute.” *State v. Robertson*, 924 P.2d 889, 892 (1996).

Here, there is a very strong inference, even before the testimony of Mr. Gray and other witnesses have been completed, that the actual conflict of interest within his office and/or the strong appearance of a conflict of interest, and Mr. Gray’s failure to take any actions to disqualify one of his many experienced prosecutors from this case, should have triggered Mr. Gray’s duty to disclose the conflict scenario to the Utah Attorney General’s Office. He has acknowledged that he did not do so.

Mr. Gray's failure to take any action to ensure that personal interests are not in conflict with his office's representation of the State in this matter is clearly a situation in which he is "unable to satisfactorily and adequately perform" his duties with respect to this motion, at a minimum. This Court should make that finding *now*, as a conflict-free representative of the State should exercise its own professional discretion to assess the alleged conflict, advise this Court, Mr. Gray, and Mr. Robinson of their assessment, and then litigate this motion, as necessary, accordingly. With the alleged conflict hanging over the litigation of this motion, representation of the State of Utah should be the province of the Attorney General. This Court need only make the finding referred to above and "recommend that [Mr. Gray] seek additional legal assistance." Utah Code § 17-68-304(2)(a)-(b). That finding and recommendation trigger the Attorney General's duty under the code.

IV. The Court's Search for a Standard Which Triggers It's Duty to Invoke Utah Code § 17-68-304.

At the hearing on January 16, 2026, the Court inquired of the parties what standard it should deploy in order to determine if the conditions described in section 17-68-304(2) exist and require a referral to the Attorney General. The Utah Code does not answer this question, nor is there any clear case law addressing the question. Mr. Robinson asserts that the standard here should be one which weeds out allegations of a conflict of interest which are without any merit whatsoever lest, as the State argued, the litigation of disqualification claims in other cases becomes a tactic for mere delay.

However, the standard must not be so burdensome on a defendant that the Court creates a risk that the litigation of a conflict of interest is handled by the very same prosecutor or prosecutorial office which is alleged to be burdened by that conflict. This is especially important in a capital prosecution, where the constitution requires a heightened standard of reliability.

In capital proceedings generally, this Court has demanded that factfinding procedures aspire to a heightened standard of reliability. This especial concern is a natural consequence of the knowledge that execution is the most irremediable and unfathomable of penalties; that death is different.

Ford v. Wainwright, 477 U.S. 399, 411 (1986) (citing *Spaziano v. Florida*, 468 U.S. 447, 456 (1984)).

We are not addressing here, the ultimate burden of proof on the moving party to prove that there are grounds for disqualification, but only what preliminary showing should trigger section 17-68-304. Mr. Robinson asserts that in light of the constitutional mandate that the Court ensure that there is heightened standard of reliability throughout a capital proceeding, the standard in a capital case should be one which requires no more than a *non-frivolous factual predicate* that there is conflict of interest requiring disqualification. The moving papers and Mr. Gray's testimony to date already clear that hurdle.

Any modest delay that may arise from referral of this motion to the Attorney General reduces the risk of an improper outcome in the long run. A trial court abuses its discretion when it does not recuse an entire prosecution office once a conflict wall surrounding a conflicted prosecutor has been shown to be ineffective. *See, e.g., People v. Tennessen*, 2009 Guam 3, ¶ 43.⁴ Recusal of an entire office is not an abuse of discretion when no attempt is made to erect a conflict wall. *State v. Gonzales*, 119 P.3d 151, 163 (N.M. Sup. Ct. 2005). A judge does not

⁴ In *Barrett-Anderson v. Camacho*, the Supreme Court of the Territory of Guam discussed the prior *Tennessen* opinion and noted the decision issued prior to the adoption of the Guam Rules of Professional Conduct. 2018 Guam 20, ¶¶ 18-19. Regarding application of an "appearance of impropriety standard" in *Tennessen* to the disqualification issue, the *Camacho* Court noted, "We do not read *Tennessen* as inconsistent with our holding today, as it is a disqualification case concerning personal conflicts in criminal cases; however, to the extent it is inconsistent, we overrule it." The *Camacho* Court clarified the standard for disqualification "is whether an attorney's continued representation of a party or participation in an action violates or significantly risks violating the Guam Rules of Professional Conduct." *Id.* ¶ 20.

abuse his or her discretion in recusing the entire office once a conflict wall has been breached. *People v. Choi*, 80 Cal. App. 4th 476, 483-84 (1st Dist. 2000) (“We will not disturb the court’s conclusion that the DA’s discretionary powers exercised either before or after trial (e.g., plea bargaining or sentencing recommendations), consciously or unconsciously, could be adversely affected to a degree rendering it unlikely that defendant[s] would receive a fair trial.”).

V. Conclusion

The Court should make the findings and referral that Utah law has authorized it to make where there is a non-frivolous factual predicate showing that the Utah County Attorney failed to erect a wall around a conflicted attorney prior to the initiation of the prosecution and thereafter failed to recuse himself once he learned of his own personal conflict of interest, demonstrating that it is, with respect to the pending motion “unable to satisfactorily and adequately perform the duties of prosecuting a criminal case.”

RESPECTFULLY SUBMITTED this 30th of January, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 30th day of January, 2026, which served all attorneys of record.

/s/ Staci Visser